

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 331
of the Code of Criminal Procedure Act No. 15 of
1979.

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:
CA/HCC/0213/2023

High Court of Colombo Case No:
HC/3640/2007

Vs

1. Kaluthotage Ravindra Kumara *alias* Army
Malli
2. Subramaniam Selvaraj
3. David Jayachandran *alias* Sinnakku
(deceased)
4. Maradamuththu Ganesh Raja *alias* Kanna
5. Munisami Pradeep
6. Kalimuttu Asok *alias* Kanna
7. Shanmugam Suresh Kumar
8. Kuruppusami Ramachandran Siranji *alias*
Roshan
9. Mohommed Fareeda *alias* Shanthi
(deceased)

Accused

AND NOW BETWEEN

1. Kuruppusami Ramachandran Siranji *alias* Roshan
2. Shanmugam Suresh Kumar
3. Kaluthotage Ravindra Kumara *alias* Army Malli

Accused – Appellants

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Neranjan Jayasinghe with Randunu Heellage and Pravindika Kularathna
for the 1st and 7th Accused-Appellants.

: Sanjith Senanayake with Upul Dissanayake, N. Perera for the 8th Accused-
Appellant

: Akila Dalpadatu S.C. for the Respondent.

Argued on : 09.03.2026

Decided on : 25.06.2026

Pradeep Hettiarachchi, J

Judgment

1. This appeal arises from the judgment and sentence dated 18.05.2023 of the Learned High Court Judge of Colombo. In the High Court of Colombo Case No 3640/2007, nine accused were originally indicted on three counts, namely;
 - a. That on or about 12.10.2023, being members of an unlawful assembly with the common intention of causing injury to one Vidana Pathiranage Chandrapala, thereby committing an offence punishable under Section 140 of the Penal Code;
 - b. That being members of the unlawful assembly caused the death of Vidana Pathiranage Chandrapala and that this offence was committed in furtherance of the common object of the said unlawful assembly, or alternatively, that the members of the said unlawful assembly knew that such offence was likely to be committed, and therefore, by being members of the said unlawful assembly at the time of committing the offence, thereby committed an offence punishable under Section 296 read with Section 146 of the Penal Code; and
 - c. That together with persons unknown to the prosecution, by causing the death of Vidana Pathiranage Chandrapala, committed an offence of murder punishable under Section 296 read with Section 32 of the Penal Code.
2. During the course of the trial, the 3rd and 9th accused died. Thus, the trial proceeded only against the 1st, 2nd, 4th, 5th, 6th, 7th and 8th accused. At the conclusion of the trial, the Learned High Court Judge found the 1st, 7th, and 8th accused (the 1st, 2nd and 3rd

Appellants in the present appeal) guilty of counts no 1 and 2, but acquitted them of count no. 3 as it was an alternative charge. The remaining accused were acquitted of all charges.

3. The grounds of appeal advanced by the Appellant are as follows:

For the 1st and 7th Appellant:

- a. The Learned High Court Judge had wrongly convicted the Accused-Appellants for charges of unlawful assembly;
- b. Evidence of the prosecution witnesses fails the test of credibility; and,
- c. The defence evidence had been rejected on unreasonable grounds.

For the 8th Accused-Appellant:

- a. The Learned High Court Judge erred in law by convicting the 8th Accused for charges of unlawful assembly;
- b. The Learned High Court Judge failed to consider that there is no evidence against the 8th Accused to attribute unlawful assembly;
- c. The Learned High Court Judge failed to consider the dock statement given by the 8th Accused and the said dock statement has been rejected on unreasonable grounds; and
- d. The Learned High Court Judge failed to consider the vital contradictions and omissions of the prosecution witnesses.

4. Thus, it can be observed that the grounds of appeal urged on behalf of all the Appellants are common in nature, and they mainly contended that the Learned High Court Judge had erred in convicting them of the charge of unlawful assembly and also had failed to consider the defence evidence properly. Moreover, the failure of the Learned High Court Judge to consider the vital contradictions and omissions was also raised as a ground of appeal by all the Appellants.

5. PW2, Kusala Rani *alias* Baby Nona, was the first witness to testify for the prosecution. In her evidence, PW2 described the incident that resulted in the death of her husband. According to her testimony, on the day of the incident, the deceased had gone out to pluck flowers. PW2 further stated that their house was situated facing the main road, namely the State Road.
6. While giving evidence, PW2 initially identified only four individuals, namely Konda Ranjith, Roshan, Sinnappu, and a person named Shasee. Of these, Konda Ranjith, Roshan, and Sinnappu were the 7th, 8th, and 3rd accused respectively, whereas Shasee was never indicted as an accused in the case. However, at a later stage of her testimony, PW2 also identified the 1st to 6th accused.
7. A careful examination of PW2's testimony reveals significant inconsistencies in her evidence at different stages of the trial. In particular, it is apparent from page 366 of the brief that, apart from the four individuals initially named by her, the remaining accused were being seen by the witness for the first time in court. Despite this, no identification parade had been conducted prior to the trial. In those circumstances, the evidentiary value of the subsequent dock identification of the 1st to 6th accused warrants careful scrutiny.
8. PW4 was the other eyewitness called by the prosecution. In her testimony, she identified only the 1st and 7th accused. However, a careful scrutiny of her evidence casts doubts as to whether she had in fact witnessed the incident. At page 419 of the brief, PW4 stated that by the time she arrived at the scene, the accused had already dispersed. Her evidence further indicates that there were several unidentified individuals present who had also assaulted the deceased. PW4 testified as follows;

“ප්‍ර: මේ කට්ටිය මොනවද ඒ වෙලාවේ කියමින් හිටියේ?”

උ: මොනවා කියමින් හිටියා ද දන්නේ නෑ. මං යනකොට මස්සිනාව කපලා මේ ගොල්ලෝ විසිරලා ගිහිල්ලා.” (Vide page 419 of the Appeal Brief)

9. PW3 was the injured party in the alleged incident. According to his testimony, it was the 3rd Accused, Sinnappu, who attacked him with a knife. Although PW3 stated that there were other persons present at the scene, he identified only Sinnappu as one of the assailants. Accordingly, his evidence does not implicate the remaining accused in the assault upon him.
10. PW5, Inspector Piyal Anuradha Mahindasiri, was the officer who visited the scene and made observations in respect of the site of the incident and the surrounding area. His observations regarding the configuration and visibility of the location cast serious doubt as to whether PW2 and PW4 could, in fact, have witnessed the incident from the positions they claimed to have occupied at the time of the incident.
11. According to PW5, the incident had occurred approximately 15 feet away from the main road, in a space situated between two buildings. His evidence suggests that the location of the incident was not visible to a person standing in the vicinity of PW2’s house. Accordingly, PW5’s observations cast doubt on the claim that PW2 was in a position to witness the incident from the location she described. PW5 testified as follows:

“ප්‍ර: මේ අපරාධය සිදු වෙලා තිබ්බේ කොහෙද?”

උ: ගරු උතුමාණෙනි, ශාන්ත ජෝශප් විදියේ සිට කොස්ගස් හන්දියට පැමිණ එනනින් වමට ඇති ස්ටේස් පර ඔස්සේ ඔරුගොඩ වන්න දෙසට ගමන් කරන විට මෙම අපරාධ ස්ථානය පිහිටි අතර, ස්ටේස් පාරේ අංක 134/266 දරන

ස්ථානයේ ඇති ගෑස් පුල් හවුස් සහ 134/262/A, මොහොමඩ් යුසුූ හසානාගේ නිවසත් අතරින් පාරේ සිට ඇති බිම් තීරුවේ මෙම අපරාධය සිදුව ඇති බවට නිරීක්ෂණය වුණා ගරු උතුමාණනි.” (vide page 453 of the Appeal Brief)

12. Answering questions in cross-examination and referring to his observation notes, PW5 firmly stated that the location where the deceased's body was found lying in a pool of blood could not be seen from outside the deceased's house. Accordingly, his evidence raises serious doubt as to whether a person positioned outside the house could have witnessed the incident or observed the deceased lying at that location.

“ප්‍ර: මේ ස්කෙච් එකට අනුව කුශලා රාණි කියන නැතැත්තියගේ නිවාස නිවෙන්නේ මේ අපරාධය සිදු වුණ ස්ථානයේ ඉඳලා කොයි පැත්තේ ද, අපරාධය සිදු වුණ ඒකියන්නේ මේ නැතැත්තා වැටිලා හිටියා ස්ථානය, බොඩි එක, පුද්ගලයා වැටිලා හිටියේ ලේ විලක් තිබුන ස්ථානයේ ඉඳලා කොයි පැත්තේද?

උ: මෙම දළ සැලැස්ම අනුව ගෘහස්ථා ගරාජයට මුහුණලා ස්ටේස් පාරේ මා සිටගෙන සිටින විට වම් පැත්තට එනම් කොස්ගස් හන්දිය දෙසට නමයි මේ කුශලා රාණි නමැත්තියගේ නිවාස පිහිටලා තිබුනේ.

.....

ප්‍ර: චන්ද්‍රපාලගේ ගෙදර එළියේ ඉඳලා බැලුවම ඔය ලේ විල තිබුන ස්ථානය කෙනෙකුට දකින්න පුලුවන්ද?

උ: දකින්න ලැබෙන්නේ නැහැ ගරු උතුමාණනි.” (vide pages 467 and 468 of the Appeal Brief)

13. Thus, in light of the observations made by PW5, the testimony of PW2 that she witnessed the incident while remaining outside the deceased's house appears to be highly improbable. PW5's evidence materially undermines her version of events and casts serious doubt on the veracity of her claim that she observed the incident from that location.
14. It is also desirable to emphasize that, in a criminal Trial, the trial Judge is under a paramount duty to carefully analyze and evaluate both the prosecution and defence evidence before arriving at a conclusion. A conviction must be founded upon a proper assessment of the totality of the evidence placed before the Court.
15. Once the prosecution has concluded its case and the Trial Judge is satisfied that the defence should be called, several options become available to the accused. The accused may elect to remain silent and offer no evidence. Alternatively, he may testify on oath and, if he so chooses, call witnesses in support of his defence. The accused may also make an unsworn statement from the dock. The exercise of any of these options is a matter for the accused, and the Court must evaluate the case in light of the course adopted by him and the applicable legal principles.
16. It is true that a dock statement is not subject to cross-examination by the prosecution and, therefore, its veracity cannot be tested in the same manner as sworn testimony. Nevertheless, where an accused elects to make a dock statement, the Trial Judge is not absolved of the duty to analyze and evaluate its contents in the context of the evidence as a whole.
17. If the Court accepts the dock statement as truthful, the accused is entitled to an acquittal. Even where the Court is unable to accept the dock statement in its entirety, if it raises a reasonable doubt as to the prosecution case, the accused is entitled to the benefit of that doubt. In such circumstances, the Court must resolve the doubt in favour of the accused and return a verdict of acquittal.

18. In ***Queen V. Kularatne* 71 NLR 529** at page 531 it was held that: -

“When an unsworn statement is made by the accused from the dock, the jurors must be informed that such statement must be looked upon as evidence, subject however to the infirmity that the accused had deliberately refrained from giving sworn testimony. But the jury must also be directed that (a) if they believe the unsworn statement it must be acted upon, (b) if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed, and (c) that it should not be used against another accused.”

19. This decision was followed in cases ***Somasiri vs. AG* 1983 (2) SLR 225**, ***Lionel vs. AG* 1988 (1) SLR 4**, ***Gunapala vs. Republic of Sri Lanka* 1994 (3) SLR 180**

20. In ***Gangananda v. The State* (1995) 2 Sri L.R.373**, it was held inter alia that:

(1) The right of an accused to make an unsworn statement from the Dock as was recognized under English Law, had been consistently followed by our Courts for a long time and it is in conformity with the legal provisions found in our law even at present.

(2) The Right of an accused to make a ‘Dock Statement’ does not vary in content or quality whether it is a trial before a jury or not.

(3) The ‘Dock Statement’ should be treated as evidence subject to two infirmities that it had not been made under oath and has not been subject to cross-examination.

21. The principles governing the evidentiary value of a dock statement are well settled in our jurisprudence. In ***Gunasiri and two others vs. Republic of Sri Lanka* 2009 (1) Sri L.R. 39**, it was authoritatively held:

“If the dock statement is believed it must be acted upon. If it creates a reasonable doubt the defence must succeed.”

22. In *Sarath v. Attorney General* (2006) 3 Sri L.R. 96, the Court emphasized that a dock statement cannot be considered in isolation. The trial judge, being fully apprised of the prosecution's case, must assess the dock statement alongside the prosecution's narrative and the entirety of the evidence adduced at trial. The credibility and weight of a dock statement can only be properly assessed by examining how it aligns with, explains, or contradicts the prosecution evidence. Thus, the acceptance or rejection of a dock statement requires a holistic evaluation of the case as a whole, and not a compartmentalized or fragmented analysis.
23. In the impugned judgment, the Learned Trial Judge merely observed that the dock statements made by the accused were insufficient and, therefore, could not be accepted. Such an approach, in light of the well-established legal principles governing the evidentiary value of dock statements, is patently erroneous and amounts to a misdirection in law. The Learned Trial Judge was under a duty not merely to reject the dock statements as insufficient, but to evaluate whether they were capable of being accepted, either wholly or in part, or whether they raised a reasonable doubt in respect of the prosecution case.
24. It is also noteworthy that the Learned Trial Judge appears to have misapplied the principle derived from *R v. Lord Cochrane* (commonly referred to as the Ellenborough principle) to the facts of the present case. In doing so, he effectively imposed an additional burden upon the accused to explain or rebut the prosecution evidence. Such an approach is contrary to the fundamental principle of criminal law that the burden of proving the guilt of the accused beyond reasonable doubt rests throughout upon the prosecution and never shifts to the defence. The accused is under no obligation to explain the prosecution case, and any failure on his part to do so cannot be treated as a substitute for proof of guilt.
25. It is also noteworthy that in his conclusion the Learned Trial Judge has come to a finding that the accused had acted in furtherance of their common intention but went on to

acquit them from count three which was based on common intention. Instead, the Learned Trial Judge found the 1st, 7th and 8th accused guilty of counts one and two, i.e., for being members of an unlawful assembly and also for committing the murder of the deceased while being members of the said unlawful assembly.

26. It is Section 138 of the Penal Code, which defines an unlawful assembly. In terms of the said statutory provision, an “unlawful assembly” consists of an assembly of five or more persons formed with any of the common objects stipulated in the said Section.

27. It is also necessary to note that the concept of “unlawful assembly” has been considered in several decisions of the superior courts of Sri Lanka, which have consistently emphasized the requirement as to its legal composition.

28. In this regard, the following binding authorities are of much relevance.

29. In ***Jayaram vs. Saraph*** 56 NLR 22, Pulle J held as follows;

“In the present case the charges clearly informed the six accused persons that they formed the unlawful assembly. The evidence was also to the same effect, namely, that only six persons took part in the assault and that these persons were the accused. The finding of fact that the 3rd to 6th accused were not members of any unlawful assembly, should have resulted in the verdict that the charges against the 1st and 2nd accused were not proved.”

30. Further, in the same judgment, citing the opinion of Soertsz J, in the Case of ***Rex vs. Dias*** (1935) 17 Ceylon Law Recorder 16, held as;

“It will be seen, therefore, that the opinion of Soertsz J. appears to be that if a number of persons are charged as having “formed” the unlawful assembly, a conviction of at least five is necessary to sustain that conviction. Whereas, if the charge against them was that they were members of an unlawful assembly, a conviction of less than

five of those charged could be supported, if there was evidence that others besides those acquitted constituted an unlawful assembly along with those who were convicted.”

31. In ***The Queen vs. Thiagarajah* 57 NLR 58**, held as follows;

*“The offence punishable under sections 140, 144 and 146 of the Penal Code on which the Magistrate committed the prisoners for trial in obedience to the Attorney General’s final instructions were clearly different from those which were originally “under inquiry.” An allegation that a man was a member of an unlawful assembly of 5 consisting of himself and four named persons is not the same as an allegation that he was a member of an unlawful assembly of 5 consisting of himself, three named persons and “a person unknown to the prosecution.” just as it requires at least two persons to form a criminal conspiracy punishable under section 113B of the Penal Code, the offence of being a member of an unlawful assembly cannot be committed except in association with 4 others. **The acquittal of one or two accused persons on a conspiracy charge therefore necessarily results in the acquittal of the other unless the indictment or charge specifically alleged (and it is proved) that someone else, known or unknown, had also participated in the crime.** The King vs. Dharmasena [(1950) 52 NLR 481]. The same principle applies mutatis mutandis, to an indictment or charge alleging participation in an unlawful assembly.” (emphasis added)*

32. In ***CA/HCC/231-235/15***, decided on 22.06.2023, held by Sasi Mahendran, J. as follows;

“Therefore, we hold that 1st, 3rd (now deceased) and the 4th Accused shared the common murderous intention to kill, one Roshan Lasantha Gomas alias Shan. The 1st and 4th Accused were also convicted for the first count and second count, that is based on unlawful assembly. Since the 2nd, 5th and 6th Accused were acquitted for all counts, including unlawful assembly, and also without the phrase in the indictment

that is “with those unknown to the prosecution”, whether this court affirms the conviction only against the 1st, 4th along with 3rd (deceased) for unlawful assembly. This court is mindful that to form unlawful assembly, there should be five or more persons according to Section 138 of the Penal Code.”

33. In the present case, the indictment alleged that the unlawful assembly consisted solely of the 09 Accused persons named therein and did not contain any averment that the alleged unlawful assembly included persons unknown to the prosecution. Furthermore, the binding authorities governing the composition of an unlawful assembly, particularly *Jayaram vs. Saraph* and *The Queen vs. Thiagarajah*, and other decisions referred to above, make it clear that where the prosecution has confined its case to the named accused persons, the acquittal of some of them, resulting in the number of participants falling below the statutory minimum of five persons required to constitute an unlawful assembly, strikes at the very foundation of the charge. Consequently, the convictions of the remaining accused become legally unsustainable, as a vital ingredient of the offence remains unproved.
34. The Learned Trial Judge acquitted the 2nd, 4th, 5th, and 6th accused on the basis that, notwithstanding the prosecution evidence indicating their presence at the scene, mere presence without proof of active participation was insufficient to attract criminal liability.
35. It is pertinent to observe that proof of active participation is generally required where liability is sought to be imposed on the basis of common intention. However, in the case of an unlawful assembly, it is not necessary to establish that every member actively participated in the commission of the offence. The prosecution need only prove that the accused was a member of the assembly and that his presence contributed to, encouraged, or inspired the commission of the offence in furtherance of the common object of that assembly.

36. Furthermore, it can be observed that the Learned Trial Judge concluded that the 1st, 7th, and 8th accused, together with the deceased 3rd accused and certain unidentified persons, had acted in furtherance of a common intention. However, the Learned Trial Judge failed to identify or analyze the evidence upon which such an inference was drawn.

37. In ***Banda v Attorney General*** [1999] 3 Sri. LR. 168, emphasizing the importance of taking into account the acts of participation on the part of each one of the accused separately to analyze their acts and relate them to the principles of law relating to common intention, Jayasuriya J held that:

“The learned trial Judge has used the term common intention only in one solitary passage in his judgment. He has culpably failed to consider the acts of participation on the part of each one of those accused separately to analyse those acts and relate them to the principles of law relating to common intention and having regard to their respective acts to determine whether they were actuated by a common intention.”

38. Also, in ***Rajadheera and Others v Attorney General*** [2008] 2 Sri LR 321 Ranjith Silva J held as follows:

“[...] Failure to give adequate reasons as to why he convicted all the accused on the basis of common intention and the failure to consider the concept of common intention, in my view, have resulted in a miscarriage of justice. Therefore, we are unable to apply the proviso to Section 334 of the Criminal Procedure Code and proviso to Article 138 of the Constitution. Further if we are going to apply the proviso to Section 334 of the Criminal Procedure Code, we have to rewrite the judgment which is not the function of the Court of Appeal.” (At pg 325)

39. In the present case, although the Learned High Court Judge acquitted the Appellants for the third count, which was found on the common intention, he nevertheless

convicted them on the 1st and 2nd counts as members of the unlawful assembly responsible for the murder of the deceased. The impugned judgment is devoid of any proper analysis of such an inference. I am of the opinion that such failure on the part of the Learned High Court Judge has resulted in a serious miscarriage of justice to the Appellants.

40. A finding of common intention cannot rest on mere presence at the scene or participation in the same incident. There must be evidence from which the Court can infer a prior meeting of minds, a pre-arranged plan, or conduct demonstrating that the accused acted pursuant to a shared intention. In the present case, the judgment does not disclose the evidentiary basis upon which the learned Trial Judge concluded that the accused acted in furtherance of a common intention. Consequently, that finding appears to have been reached without adequate analysis of the evidence and is therefore open to serious challenge.

41. In any event, once the Learned Trial Judge acquitted the 2nd, 4th, 5th, and 6th accused of Counts 1 and 2, the remaining convictions of the 1st, 7th, and 8th accused cannot be sustained as members of an unlawful assembly, since the existence of an unlawful assembly necessarily requires the participation of five or more persons.

42. Accordingly, in the absence of the statutory minimum number of participants, the essential ingredient of unlawful assembly is not established. Consequently, the convictions of the 1st, 7th, and 8th accused under Sections 140 and 296 read with Section 146 cannot be sustained in law and are liable to be set aside.

43. In the aforesaid circumstances, I conclude that it is not safe to affirm the conviction against the Appellants.

44. For the reasons set out above, we allow the appeal and we proceed to quash the convictions and sentences imposed on the Appellants by the Learned High Court Judge of Colombo.

45. Accordingly, we acquit the Appellants of all the charges leveled against them.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree,

Judge of the Court of Appeal

.

.